Pen Test Engagement Letter

Dec 20, 2020

FNB Financial Services,

Albuquerque, NM 50020

Dear,

This letter agreement, if acceptable to and countersigned by you, will serve as the agreement ("Agreement") between FNB.COM (FNB Financial Services) and EGS Security Solutions ("EGS") governing EGS's conduct of the Pen Test ("Pen Test") required by the "Pen Test Section" of this Engagement Letter. The effective date of the Agreement (the "Effective Date") will be the date on which this letter agreement is executed by FNB Financial Services. EGS and FNB Financial Services are each referred to herein as a "Party" and collectively, the "Parties."

1. BACKGROUND

The FNB Financial Services board requires, within 45 days of the date of the respective board meeting, to retain an independent consultant to conduct an independent security review of all FNB Financial Services information systems. The review is to include a comprehensive vulnerability and risk assessment, security posture assessment, and assessment of security controls implemented across FNB Financial Services information systems. This Agreement, together with its attachments, constitutes that engagement letter.

2. ORGANIZATION OF THIS AGREEMENT

Section 3 of this document sets forth the scope of pen testing service, section 4 list the proposed services, section 5 prescribes the timing of pen testing services, section 6 defines reporting requirements and section 7 sets forth the terms and conditions for this pen test assignment.

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3. SCOPE OF PEN TESTING SERVICE

The scope of the security tests that will be performed for the FNB Financial Services is limited and well defined. Tests on systems and interfaces that are outside the boundary of the FNB Financial Services are not included in this plan.

I. System Name/Title

The Information System that is undergoing testing as described in this Security Assessment Plan is named in Table 1-1.

Unique Identifier	Information System Name	Information System Abbreviation

Table 1-1. Information System Name and Title

The physical locations of all the different components that will be tested are described in Table 1-2.

Data Center Site Name	Address	Description of Components

Table 1-2. Location of Components

II. IP Addresses Slated for Testing

IP addresses, and network ranges, of the system that will be tested are noted in Table 1-3.

IP Address(s) or Ranges	Hostname	Software & Version	Function

Table 1-3. Components Slated for Testing

III. Web Applications Slated for Testing

Activities employed to perform role testing on web applications may include capturing POST and GET requests for each function. The various web based applications that make up the system, and the logins and their associated roles that will be used for testing are noted by URL in Table 1-4.

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Web URL	IP Address	Function
www.fnb.com		

Table 1-4. Application URLs Slated for Testing

IV. Databases Slated for Testing

Databases that are slated for testing include those listed in Table 1-5.

Database Name	Hostname	IP Address	Additional Info

Table 1-5. Databases Slated for Testing

V. Roles Slated for Testing

Role testing will be performed to test the authorization restrictions for each role. EGS will access the system while logged in as different user types and attempt to perform restricted functions as unprivileged users. Functions and roles that will be tested are noted in Table 1-6.

Role Name	Test User ID	Associated Functions

Table 1-6. Role Based Testing

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4. EXPECTED TIME DURATION AND SCHEDULE

I. Pen Test.

The Engagement Letter requires EGS to confirm the review will be completed within 120 days following FNB Financial Services approval of this Agreement.

II. Report of Findings.

Within thirty (30) days of completing the Pen Test, EGS will prepare a written report detailing the findings of the Pen Test ("Pen Test Report"). Upon completion, EGS will simultaneously deliver the Foreclosure Report to the members of the Board of Directors of FNB Financial Services.

5. ACCEPTANCE OF PROPOSED SERVICES

I. Security Testing May Include

Security testing may include the following activities:

- Port scans and other network service interaction and queries
- Network sniffing, traffic monitoring, traffic analysis, and host discovery
- Attempted logins or other use of systems, with any account name/password
- Attempted SQL injection and other forms of input parameter testing
- Use of exploit code for leveraging discovered vulnerabilities
- Password cracking via capture and scanning of authentication databases
- Spoofing or deceiving servers regarding network traffic
- Altering the running system configuration except where denial of service would result
- Adding user accounts

II. Security Testing Will Not Include

Security testing will not include any of the following activities:

- Changes to assigned user passwords
- Modification of user files or system files
- Telephone modem probes and scans (active and passive)
- Intentional viewing of FNB Financial Services staff email, Internet caches, and/or personnel cookie files
- Denial of Service attacks (Smurf, land, SYN flood, etc.)
- Exploits that will introduce new weaknesses to the system

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- Intentional introduction of malicious code (viruses, Trojans, worms, etc.)

6. REPORTING REQUIREMENTS

I. Periodic Reports to Management.

EGS will report to FNB Financial Services at regular intervals and in a form to be mutually agreed, no less than every fourteen (14) days, concerning the status of its performance of services under this Agreement. At a minimum, EGS's reporting will identify any respects in which the accomplishment of milestones set forth in the Pen Test Project Plan is at risk, any need(s) for assistance from FNB Financial Services, and any findings or observations believed by FNB Financial Services to warrant inclusion in the Pen Test Report.

II. Ad Hoc Reports to Management.

Managing Directors assigned by EGS to this engagement shall be reasonably available to FNB Financial Services management by telephone, e-mail, or in-person for ad hoc consultations and status reports throughout the period of this Agreement.

III. Reporting to the Board.

Upon reasonable notice, EGS will report to the Board of FNB Financial Services, or any committee of the Board charged with oversight of FNB Financial Services's efforts to comply with the Engagement Letter for the purpose of discussing the status of EGS's provision of services pursuant to this Agreement and any findings or observations EGS may have made in the course of providing such services.

IV. Reporting to the FNB FINANCIAL SERVICES.

If requested by FNB Financial Services, EGS will meet with representatives of the FNB Financial Services to discuss the status of the Pen Test, the findings set forth in the Pen Test Report, or any other matters germane to this engagement.

7. TERMS AND CONDITIONS

A. DEFINITIONS

1. "Affiliates" means FNB Financial Services and any present or future subsidiary thereof.
2. "Confidential Information" means any and all information, including trade secrets, knowhow and proprietary information, techniques, plans or any other information relating to the business of a Party, including without limitation, work in process and information regarding a Party's present or future products, customers, employees, investors or affiliates and disclosed or otherwise supplied in confidence by the Party who disclosed the information ("Disclosing Party") to the other Party ("Receiving Party"), or received by the Receiving Party in the course of carrying out the tasks

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hereunder, or as a result of access to the premises of the Disclosing Party. This includes information furnished in the course of the provision of Services by EGS, or related to discussions between the Parties in anticipation of this Agreement or any particular scope of work under this Agreement. Confidential Information includes: (i) information disclosed in a written or other tangible form which is clearly marked with a "confidential" or "proprietary" legend or other comparable legend; (ii) information disclosed orally or visually which is identified as confidential at the time of disclosure and confirmed in writing within a reasonable time; (iii) any other information which a reasonable person would deem confidential under the context of disclosure or due to the nature of the information; and(iv)in the case of FNB Financial Services, Customer/Consumer Information.

3. "Customer/Consumer Information" means any and all information or data that is provided by, through or on behalf of FNB Financial Services or any Affiliate to any EGS Personnel, or is otherwise acquired by any EGS Personnel in the course of performing Services under this Agreement that relates to any: (i) current, prospective or former customer (whether an individual, business entity, governmental unit, or otherwise) of FNB Financial Services or any Affiliate, (ii) consumer of FNB Financial Services or any Affiliate, (iii) nonpublic personal information of FNB Financial Services or any Affiliate regarding its customers or consumers (within the meaning of Title V of the Gramm-Leach-Bliley Act and its implementing regulations, or any similar provision under any other applicable law), (iv) information subject to Section 628 of the Fair Credit Reporting Act and any regulations or guidelines adopted under those laws (or any similar provision under any other applicable law), or (v) information from which a customer or consumer's identity can be ascertained, either from the information itself or by combining the information with information from other sources. "Customer/Consumer Information" includes, but is not limited to, financial information, medical or health-related information. Examples are credit history, income, financial benefits, information in an application, loan or claim information, health information such as medical records, names or lists of individuals derived from nonpublic personally identifiable information or otherwise derived from FNB Financial Services or an Affiliate, or the identification of an individual as a customer or an individual claimant under a financial product or service provided by FNB Financial Services or an Affiliate.

4. **"Deliverables"** means materials that EGS will furnish to FNB Financial Services as a result of the services performed under this Agreement, including, but not limited to the Pen Test Report and the reports described above in Section 3.c.iii (Reporting).

5. **"Intellectual Property Rights"** means all patents (including originals, divisionals, continuations, continuations in-part, extensions, foreign applications, utility models and reissues), patent applications, copyrights (including all registrations and applications therefor), trade secrets, service marks, trademarks, trade names, trade dress, trademark applications and other proprietary and intellectual property rights, including moral rights.

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6. **"Services"** means the services to be provided by EGS under this Agreement.
7. **"EGS Personnel"** means EGS and each of its employees, along with any subcontractors or agents of EGS.

B. COMPLIANCE WITH ENGAGEMENT LETTER

The Parties intend this Agreement to comply fully with the requirements of the Pen Test Section of the Engagement Letter. In the event that the FNB Financial Services requires further refinement of this letter as a condition of its approval, the Parties agree to work together in good faith to make refinements acceptable to the FNB Financial Services.

C. INDEPENDENCE OF EGS CONDUCTING PEN TEST

EGS has been retained to conduct an independent review of FNB Financial Services's complete information systems. EGS agrees that the Pen Test will comply with all requirements set forth below:

1. The Pen Test conducted by EGS shall not be subject to the direction, control, supervision, oversight, or influence by FNB Financial Services, its contractors or agents. EGS shall immediately notify FNB Financial Services, of any effort by FNB Financial Services, directly or indirectly, to exert any such direction, control, supervision, oversight, or influence over FNB Financial Services, its contractors or agents.
2. EGS agrees that it is solely responsible for the conduct and results of the Pen Test, in accordance with the requirements of this Engagement Letter.
3. The conduct of the Pen Test shall be subject to the monitoring, oversight, and direction of the FNB Financial Services. EGS agrees to promptly comply with all written comments, directions, and instructions of the FNB Financial Services concerning the conduct of the Pen Test, and that it will promptly provide any documents, workpapers, materials or other information requested by the FNB Financial Services with respect to the Pen Test, regardless of whether such information constitutes confidential information; provided, however: (i) neither EGS nor FNB Financial Services waives any right to assert that information requested by the FNB Financial Services is privileged; and (ii) EGS will not be required to provide the source code for any proprietary software used by EGS in connection with providing the Pen Test.
4. EGS agrees to provide regular progress reports, updates and information concerning the conduct of the Pen Test to the FNB Financial Services.
5. EGS will conduct the Pen Test using only personnel employed or retained by EGS to perform the work required to complete the Pen Test (collectively, "EGS Personnel").
6. Subject to the requirements and restrictions of no. 5 above, including the requirement of specific approval by the FNB Financial Services, EGS may utilize

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documents, materials or other information provided by FNB Financial Services, and may communicate with FNB Financial Services, its contractors or agents, in order to conduct the Pen Test.

7. EGS agrees that any legal advice needed in conducting the Pen Test shall be obtained from the outside law firm whose retention for that purpose will be approved in advance by the FNB Financial Services. EGS agrees not to obtain legal advice (or other professional services) in conducting the Pen Test from FNB Financial Services's inside counsel.

8. If the FNB Financial Services determines, in its sole discretion, that EGS has not been fully compliant with the foregoing standards, the FNB Financial Services may retain a successor consultant, in which case FNB Financial Services shall have no further obligation to EGS other than for services performed up to that date for FNB Financial Services, and in which case EGS will provide reasonable assistance as requested for any transition to a successor consultant, at rates to be mutually agreed upon in writing by the Parties. In no event will EGS be required to provide access to, or copies of, any proprietary software of EGS to any successor consultant, except as specifically agreed in writing by an authorized representative of EGS.

D. INDEPENDENCE OF EGS GENERALLY

As discussed in more detail in Section 3.b, as an independent consultant, EGS will have sole responsibility for the methodology, findings, and observations set forth in the Pen Test Report.

EGS's core business is the performance of pentests and security audits. Its entire business model is predicated upon the provision of independent analysis and reporting. EGS is a privately-held limited liability company (LLC). No investors in EGS or LLC members are servicing companies.

EGS currently has no other engagements with FNB Financial Services. None of the prior work or the potential future work will affect the independence of EGS in performing the Pen Test.

1. EGS's Past Work with FNB Financial Services

EGS has not performed any previous engagements with FNB Financial Services.

2. Conflict of Interest Management.

In connection with this engagement, EGS will implement various controls to manage conflicts and ensure that the security review services are provided with an appropriate level of independence. These controls include:

a. Restricting any individual who previously was employed by, or otherwise was under contract to provide services to, FNB Financial Services from:

(i) Being assigned to perform loan-level reviews or borrower outreach

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efforts in connection with this engagement;

(iii) Providing strategic input on EGS's approaches to, or execution of, this engagement. EGS may make exceptions to these restrictions on a case-by-case basis based on EGS's conclusion that an individual who was employed by or otherwise provided services to FNB Financial Services was not exposed to FNB Financial Services's activities, and that such exception will not result in a conflict of interest or compromise EGS's independence in performing the Services. No exception will be granted without the written approval of EGS's General Counsel, President, or Chief Executive Officer.

b. The implementation of an information "firewall" to prevent any individual who previously was employed by, or otherwise was under contract to provide services to, FNB Financial Services from having access to information related to: (i) the results of EGS's security review services; (ii) summary information concerning the services performed by EGS pursuant to this engagement letter; and/or (iii) information concerning FNB Financial Services's policies and procedures. Pursuant to the exceptions discussed above.

- EGS will implement technical restrictions in the proprietary software platform that EGS will use in connection with the Pen Test (that prevents individuals who are not approved to provide the services contemplated by this engagement letter from accessing information concerning the results of the services.
- Implementing policies, procedures, and training related to these conflict management protocols.
- Periodic review by EGS's General Counsel of the controls and restrictions discussed in this section.

During the course of the engagement, EGS will continue to monitor for actual or apparent conflicts of interest, maintain a dialogue with the FNB Financial Services related to any conflict of interest concerns it may have, and take such further action(s) that are necessary to address any additional conflict of interest issues that may arise.

E. STANDARDS FOR PERFORMANCE OF SERVICES

1. EGS Personnel

a. **Independent Contractors.** EGS will select all EGS Personnel, and these individuals will be under the exclusive supervision and control of EGS, subject to the terms of this Agreement, EGS will also undertake reasonable efforts to ensure any Independent Contractors do not have any conflict of interest to FNB Financial Services or other conflicts that would in any way compromise their ability to work with EGS in an independent manner.

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b. **Subcontractors.** EGS will ensure that all subcontractors ("Subcontractors") who perform Services under this Agreement comply at all times with the terms of this Agreement. EGS will obtain written agreement with the Confidentiality provisions of this engagement, and EGS will be responsible for any failure of its Subcontractors to comply with any terms of this Agreement. EGS will also undertake reasonable efforts to ensure any Subcontractors do not have any conflict of interest to FNB Financial Services or other conflicts that would in any way compromise their ability to work with EGS in an independent manner.

i. **Individuals.** EGS may not use individuals who (i) are not employees of EGS, (ii) employees of staffing agencies retained by EGS, in the performance of Services, *unless* approved by FNB Financial Services in a signed writing, which approval must be obtained prior to when the individual commences performing any aspect of the Services, and which approval will not be unreasonably with held or unduly delayed.

F. DISCLOSURES BY EGS NECESSARY TO PERFORM SERVICES

1. In the event it is necessary for EGS to disclose Confidential Information including but not limited to Customer/Consumer Information to a third party including any Subcontractor in order to perform EGS's duties under this Agreement, EGS shall disclose only such Confidential Information as is necessary for such third party to perform its obligations to EGS and shall, before such disclosure is made shall obtain written agreement prohibiting the third party's redisclosure, duplication or reuse of any Confidential Information. If requested by FNB Financial Services, any employee, representative, agent or subcontractor of EGS shall enter into a non-disclosure agreement in order to protect the Confidential Information.
2. **Replacement.** If FNB Financial Services requests that EGS Personnel and/or Dependent Providers be replaced on a project due to unsatisfactory performance or lack of the requisite skills, FNB Financial Services and EGS will meet to discuss FNB Financial Services's concerns, and will use good faith efforts to resolve any issues so raised to FNB Financial Services's reasonable satisfaction. Notwithstanding the foregoing, in order to maintain the independence of EGS in performing the Pen Test, the final decision on whether to remove or replace any Personnel will be made by EGS in its sole discretion.
3. **Non-Exclusive.** The Parties acknowledge and agree that the procurement of Services under this Agreement will be on a non-exclusive basis and that neither FNB Financial Services nor its Affiliates guarantees to EGS any minimum amount of business other than as agreed herein. EGS and EGS Personnel may contract to perform similar services for others during the term of this Agreement, subject to EGS's obligations under this Agreement. No Confidential Information as defined under this Agreement will be shared with any of EGS's other clients engaged in their own Pen Test. EGS may use its proprietary software for the purpose of providing Pen Test services to

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other entities; provided, however, that in no event will EGS disclose or otherwise use any Confidential Information that is specific to FNB Financial Services in connection with the provision of services to any third party.

G. INTELLECTUAL PROPERTY RIGHTS

1. **FNB Financial Services's Data.** EGS acknowledges and agrees that FNB Financial Services shall retain all right, title and interest in and to all FNB Financial Services Confidential Information, including all Intellectual Property Rights therein, and any derivatives of FNB Financial Services's Confidential Information or improvements to FNB Financial Services's Confidential Information. FNB Financial Services grants no licenses to EGS to use the FNB Financial Services Confidential Information other than for the purposes of performing Services hereunder, pursuant to the terms of this Agreement.
2. **EGS's Technology.** FNB Financial Services acknowledges and agrees that EGS is the sole and exclusive owner or all copyrights, patents, trade secrets, intellectual property or any other intellectual property rights associated with any ideas, designs, practices, software applications, processes, apparatus, improvements, inventions, know-how, trade secret, formulae, products or future products, plans, devices, or works of authorship created, conceived, or originated by EGS, either individually or jointly with the Company or third parties (whether or not patented, patentable, copyrighted, or copyrightable), including any improvements, enhancements or refinements thereto, that are directly or indirectly useful in any aspect of the business of EGS and related to the performance of Services hereunder (collectively, "EGS Technology"). **All** EGS Technology is the Confidential Information of EGS.
3. **FNB Financial Services Technology.** The Parties agree that all Intellectual Property Rights in and to the inventions, discoveries, or innovations developed by FNB Financial Services prior to or during the term of this Agreement that are embodied in the products and processes utilized by FNB Financial Services in its own internal business operations or its business activities undertaken with current or prospective customers, consumers or service providers ("FNB Financial Services Technology")' along with FNB Financial Services's or its agents' improvements to that technology and any derivative works of such technology, are and shall remain the sole and exclusive property of FNB Financial Services.
4. **Ownership.** Except as noted herein with respect to the EGS Technology in Section above, or as set forth in Section below, the Parties agree that FNB Financial Services is the sole and exclusive owner of the Deliverables.
5. **Exclusions.** Each Party may, during the course of the performance of the Services by EGS for FNB Financial Services, discover or learn information or develop knowhow of general application regarding the subject matter of the Services, which discovery, information or know-how would not deprive the other Party of any vested proprietary rights in any system, process or other business operation disclosed to

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such Party ("Residual Information"). Each Party is entitled to use Residual Information it learns from the other Party without the need to seek the approval of the other Party or pay any compensation for such Residual Information.

H. ACCEPTANCE

1. **Acceptance.** FNB Financial Services intends to use the Deliverables in furtherance of its business and to assist FNB Financial Services's own counsel in providing legal advice as to compliance with the established information security standards. FNB Financial Services will have the right to evaluate the Deliverables for compliance with the terms of this Agreement. FNB Financial Services may not reject the Services or Deliverables for subjective reasons (e.g., FNB Financial Services disagrees with the findings or conclusions reached, or recommendations set forth, in the Deliverables), but may only do so for EGS's failure to perform the Services in accordance with this Agreement.
2. **Non-conformance.** Within ten (10) business days after receipt of any Deliverable (or within the number of days specified in any mutually agreed upon work plan), FNB Financial Services will review the Deliverable to confirm that it conforms to the requirements of this Agreement. If FNB Financial Services reasonably rejects a Deliverable, FNB Financial Services will notify EGS and identify in detail any deficiencies, and EGS, at its own cost and expense, will have the opportunity to correct the deficiencies identified by FNB Financial Services within ten (10) business days following its receipt of FNB Financial Services's rejection notice (or within the number of days specified in any mutually agreed upon work plan), and FNB Financial Services will re-evaluate the modified Deliverable, and provide a response in writing. This process will continue until the Deliverables are acceptable under the terms of this Agreement; provided, however, that in the event that EGS has not corrected and/or FNB Financial Services has not accepted any Deliverable after the Parties have continued this process for two successive rounds, then FNB Financial Services shall have the right to terminate this Agreement. The provisions of this subsection are not intended to empower FNB Financial Services to require EGS to modify any findings, recommendations or conclusions set forth in the Deliverable, as long as the Deliverable conforms to the requirements of this Agreement. If FNB Financial Services fails to provide EGS with a written rejection within ten (10) business days after its receipt of the Deliverables, the Deliverables will be deemed accepted by FNB Financial Services.

I. PRICING AND PAYMENT

1. **Payment Terms.** Fees for services performed (and expenses incurred) by EGS in connection with the Pen Test will be in paid in accordance with a separate letter agreement entered into by FNB Financial Services and EGS.
2. **Rates and Overtime.** EGS will comply with all applicable state and federal wage and

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hour laws with respect to the payment of overtime to EGS Personnel, but EGS will not charge FNB Financial Services any additional amounts for overtime unless FNB Financial Services previously authorized the overtime in writing.

3. **Taxes.** On its invoices, EGS will itemize amounts for any and all sales, use, excise, valueadded, or goods and services taxes due under federal, state, local or foreign law that are associated with the Services or Deliverables rendered by EGS under this Agreement (but specifically excluding taxes in the nature of ordinary personal property taxes assessed against or payable by EGS, taxes based upon EGS's net income, EGS's corporate franchise taxes and the like) (collectively, "Taxes"). FNB Financial Services will pay or reimburse EGS for all Taxes and EGS will remit those amounts to the appropriate taxing authority, and keep appropriate records of the assessment and payment of the Taxes. EGS will be exclusively liable for any penalties, interest and other charges of any jurisdiction, and any other fees or costs arising from EGS's failure (i) to assess, or timely assess, any applicable Taxes (although FNB Financial Services will remain liable for the underlying Taxes that EGS should have assessed), or (ii) to remit any amounts for Taxes it has collected from FNB Financial Services.

J. SECURITY

1. Compliance with FNB Financial Services Standards. It is not contemplated that EGS will have access to FNB Financial Services's secure facilities or information systems, or to "Restricted" Confidential Information of FNB Financial Services (e.g., symmetric encryption keys, passwords, etc.), in a manner that would necessitate information security planning processes. However, EGS will have access to FNB Financial Services facilities and Confidential Information. Therefore, EGS, for itself and EGS Personnel, will comply with all of FNB Financial Services's requirements in relation to the security of the FNB Financial Services facilities and Confidential Information that have been provided to EGS in writing in advance, attached as Schedule
2. This obligation includes the obligation of all EGS Personnel performing the Services, wherever located, to comply with the terms of (i) any FNB Financial Services security or information processing requirements set forth in this Agreement; or (ii) in a mutually agreed upon information security procedures between the Parties.
3. **EGS's Program.** EGS will implement such security measures as it deems commercially reasonable to comply with its general obligations in this Section 3.i.vi (Security) in order to control and mitigate the risks of loss, theft or disclosure of any FNB Financial Services Confidential Information or FNB Financial Services Technology to which EGS has access in relation to the Services, and in a manner commensurate with the sensitivity of the Services and such information and technology.
4. **Risk Assessments.** FNB Financial Services reserves the right to conduct, at its cost, an initial risk assessment prior to commencing Services to determine the risks associated with the Services to be performed. Depending on the results of this

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assessment, FNB Financial Services may also conduct, at its cost, a site audit or other risk evaluations of the operations of EGS Personnel, but these sorts of evaluations are not generally anticipated by the Parties in the ordinary course of FNB Financial Services receiving Services from EGS. EGS Personnel will cooperate with FNB Financial Services in such initial assessment, and any subsequently required evaluations, in order to permit FNB Financial Services to evaluate the ability of EGS Personnel to comply with FNB Financial Services internal policies and procedures in relation to the Services.

5. **Protecting Customer/Consumer Information.** To the extent that EGS receives any Customer/Consumer Information as a result of any exchange of information under the Agreement, and notwithstanding anything to the contrary contained in the Agreement, EGS agrees that it will (a) not disclose or use any Customer/Consumer Information except to the extent necessary to carry out its obligations under the Agreement or as required by law and for no other purpose, (b) not disclose Customer/Consumer Information to any third party except (i) the acc, or (ii) any Dependent Provider specified in Section 3.i.ii.1.b.ii, including its third party service providers, without the prior written consent of FNB Financial Services and subject to the further requirements of this Section, (c) employ commercially reasonable administrative, technical and physical safeguards, including proper information disposal procedures, to prevent unauthorized use or disclosure of Customer/Consumer Information, which are consistent with acceptable standards and practices of FNB Financial Services's industry, (d) promptly provide such information regarding its privacy and information security systems, policies and procedures as FNB Financial Services may reasonably request relating to its due diligence and oversight obligations under applicable laws and regulations, (e) in the event of any actual or apparent theft, unauthorized use or disclosure of any Customer/Consumer Information, immediately commence commercially reasonable efforts to investigate and correct the causes and remediate the results thereof, and (f) as soon as practicable following discovery of any event described in clause (e) hereof, provide FNB Financial Services notice thereof, and such further information and assistance as may be reasonably requested. With respect to any third party provided access to Customer/Consumer Information, EGS will enter into a written agreement with such third party requiring safeguarding of such Customer/Consumer Information Data in a manner no less restrictive than EGS's obligations under the Agreement, and including those affirmative obligations described in this Section.

K. CONFIDENTIALITY

1. Mutual Obligations

a. **Standards.** Confidential Information of the Disclosing Party will be maintained in confidence by the Receiving Party, who will safeguard this information using the same degree of care as it uses to safeguard its own Confidential Information, but in no case less than a reasonable degree of care. Subject to the terms of this

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Agreement, the Receiving Party will limit (a) access to the Disclosing Party's Confidential Information to those of its employees, officers, subcontractors and agents with a need to know such Confidential Information for the performance of obligations under this Agreement, and (b) use of the Disclosing Party's Confidential information for the exclusive purpose of fulfilling its obligations under this Agreement. Confidential Information of the Disclosing Party is and will remain the sole and exclusive property of the Disclosing Party, and the Receiving Party has no right in or to the Disclosing Party's Confidential Information. EGS acknowledges that FNB Financial Services's Confidential Information includes both "Confidential Information" (defined above) and "Customer / Consumer Information" (as defined above). EGS and FNB Financial Services will provide the other Party's Confidential Information to its respective Personnel only after EGS or FNB Financial Services, as the case may be, has (a) informed each individual or legal entity of the confidential nature of the information and of the obligation to maintain its confidentiality, and (b) has procured a written agreement from each such Personnel to maintain the confidentiality of the other Party's Confidential Information, it being understood that such Personnel's obligation of confidentiality may be expressed in the form of a written agreement applicable generally to the confidentiality of information belonging or pertaining to parties with whom EGS or FNB Financial Services, as the case may be, does business.

b. **Return of Information**. At any time at the request and option of the Disclosing Party and in the event of termination or expiration of this Agreement (or any part thereof), the Receiving Party agrees to promptly: (a) return to the Disclosing Party the Confidential Information and/or Customer/Consumer Information, as applicable; or (b) destroy or permanently erase (on all forms of recordation) the Confidential Information and/or Customer/Consumer Information, as applicable and, if requested by the Disclosing Party, acknowledge in writing that all such Confidential Information and/or Customer/Consumer Information, as applicable, has been destroyed or permanently erased. Notwithstanding the foregoing, each Party may retain copies of the Confidential Information and/or Customer/Consumer Information, as applicable, to the extent required to comply with internal record retention policies, data backup and recovery requirements in the ordinary course of business, and applicable legal and regulatory requirements, provided, however, that such Confidential Information and/or Customer/Consumer Information, as applicable, will remain subject to the terms and conditions herein.

c. **Title.** The Parties acknowledge and agree that any disclosure of Confidential Information, and in the case of Customer/Consumer Information, will in no way be construed to be an assignment, transfer, or conveyance of title to or ownership rights in such Confidential Information or Customer/Consumer Information. In addition, FNB Financial Services's obligations under this Section with respect to EGS's Confidential Information will not be construed to limit FNB Financial Services's rights to own or use intellectual property.

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d. **Exclusions.** Except for Customer/Consumer Information (which will always remain as Confidential Information without exception), Confidential Information will not include information to the extent that: such information is or becomes publicly available other than through any act or omission of either Party in breach ofthis Agreement; (b) such information was received by the Receiving Party other than under an obligation of confidentiality from a third party, which third party had no obligation of confidentiality to the Disclosing Party; or (c) such information was in the possession of the Receiving Party at the time of the disclosure without obligation of confidentiality, or was independently developed by the Receiving Party without reference to the Disclosing Party's Confidential Information. The burden of proof that Confidential Information falls into anyone of the above exemptions will be borne by the Party claiming such exemption(s).

e. **Safeguards.** EGS maintains commercially reasonable safeguards designed to protect against the destruction, loss, alteration of or unauthorized access to its clients' confidential information, including, without limitation, FNB Financial Services's Confidential Information in the possession of EGS Personnel, which safeguards include policies for the disposal/destruction of and prohibiting any alteration or unauthorized access to any such data that are commensurate with the sensitivity of the materials, but are otherwise in accordance with the terms of this Agreement regarding the proper handling of FNB Financial Services's Confidential Information.

f. **Encryption.** EGS acknowledges that FNB Financial Services Confidential Information, in particular Customer/Consumer Information, may, in accordance with FNB Financial Services information security policies, require encryption and/or other information security controls when it is transmitted over a network, or is stored, processed or managed on equipment belonging to EGS Personnel (including portable equipment such as laptops and other portable devices), whether this equipment is used at a FNB Financial Services site or elsewhere, and EGS agrees to conform to such encryption policies, pursuant to the terms.

2. Legal Proceedings. In the event a subpoena or other legal process is served upon the Receiving Party that, pursuant to the requirement of a judicial authority, governmental agency or law of the United States or any state thereof (or any governmental or political subdivision thereof), requires the disclosure of either Party's Confidential Information or any work product prepared under this Agreement disclosed hereunder, to the extent practicable and legally permissible, the Receiving Party will notify the Disclosing Party promptly upon receipt of such subpoena or other request for legal process (unless such notice is prohibited by applicable law, rule or regulation), and will cooperate with the Disclosing Party, at the Disclosing Party's expense, in any lawful effort by the Disclosing Party to contest the legal validity or scope of such subpoena or other legal process.

3. Third Party Proprietary Information. Neither Party will disclose any information to

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the other Party that it actually knows to be the proprietary or confidential information, or trade secret, of a third party, except as permitted by the license or other terms of use under which the Disclosing Party received such information from the third party. Each Party will take all reasonable steps necessary to ensure the fulfillment of this obligation.

4. Injunctive Relief. The Receiving Party acknowledges it would be difficult to fully compensate the Disclosing Party for damages that may result from the breach or threatened breach of the foregoing provisions and, accordingly, that the Disclosing Party will be entitled to seek injunctive relief, including temporary restraining orders, preliminary injunctions and permanent injunctions, to enforce such provisions, without the necessity of posting any bond thereof. This provision with respect to injunctive relief will not, however, diminish the Disclosing Party's right to claim and recover damages.

5. Publicity. Except when disclosure is compelled pursuant to Section 3.i.vii.2 (Legal Proceedings), as otherwise contemplated by this Agreement, or as necessary for EGS to perform the Pen Test, EGS will not disclose the existence of this Agreement or the business relationship between FNB Financial Services and EGS to any outside third party without FNB Financial Services's prior written approval, from an FNB Financial Services Executive Vice President. This restriction includes, but is not limited to, using FNB Financial Services's name, likeness or logo ("FNB Financial Services's Identity"). By way of example and not limitation, EGS will not use FNB Financial Services's Identity, directly or indirectly, in conjunction with any other clients of EGS, any client list, advertisements, news/press releases or releases to any professional or trade publications, or in any document that EGS plans to file with the Securities and Exchange Commission without the aforementioned approval.

6. Background Checks. EGS agrees to conduct background checks of its employees, Independent Contractors and Subcontractors who will be participating in the Pen Test or otherwise have access to Confidential Information. These background checks will comport with the requirements outlined in Schedule 1. In the event that EGS does not comply with the terms of this Section, FNB Financial Services will have the right, in its sole and absolute discretion, to terminate this Agreement immediately.

7. Security Breach. In the event of any actual or suspected security breach EGS either suffers or learns of that either compromises or could compromise FNB Financial Services's Confidential Information, including Customer/Consumer Information (e.g., physical trespass on a secure facility, computing systems intrusion/hacking, loss/theft of an unencrypted PC (laptop or desktop), loss/theft of printed materials, etc.) (collectively, a "IT Security Breach"), EGS will notify FNB Financial Services as soon as practicable, but within a period not to exceed twenty-four (24) hours of its discovery of such Security Breach, and will immediately coordinate with FNB Financial Services security personnel to investigate and remedy the Security Breach, as directed by such FNB Financial Services security personnel. Except as may be required by applicable law, EGS agrees that it will not inform any third party of any

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such Security Breach without FNB Financial Services's prior written consent, which consent will not be unreasonably withheld or delayed; provided, however, if such disclosure is required by applicable law, then to the extent practicable and legally permissible, EGS will maintain records of any known or suspected security breaches in accordance with its information security practices, and will make such records reasonably available to FNB Financial Services upon request.

8. Disclosure to Regulators. Notwithstanding anything herein to the contrary, upon prior written notice to EGS and subject to the Parties' right to assert that the applicable Confidential Information is privileged, FNB Financial Services may disclose to any federal or state law enforcement agency, or other regulatory officials having jurisdiction over FNB Financial Services.

L. WARRANTIES

1. **Compliance.** EGS represents and warrants to FNB Financial Services that: (i) the entering into and carrying out of the terms and conditions of this Agreement will not violate or constitute a breach of any obligation legally binding upon EGS; and (ii) EGS will comply with all applicable federal, state and local laws (and all corresponding regulations/directives) in connection with its performance under this Agreement. FNB Financial Services represents and warrants to EGS that the entering into and carrying out of the terms and conditions of
this Agreement will not violate or constitute a breach of any obligation legally binding upon FNB Financial Services.

2. **Performance.** EGS represents and warrants that it will provide competent EGS Personnel with sufficient skill, knowledge, and training to perform the Services for FNB Financial Services that are set forth in this Agreement, and that such EGS Personnel will perform such Services in a diligent and professional manner, and the Services and any Deliverables will comply in all material respects with the performance specifications set forth in this Agreement, as the same may be modified by mutual agreement of the Parties from time to time in writing. Except as may be authorized by the terms of this Agreement, EGS warrants that the performance of the Services will take place solely within the United States.

3. **Relationship.** EGS will monitor, supervise and direct EGS Personnel in the performance of the Pen Test. EGS represents and warrants that: (i) EGS is an independent contractor and EGS Personnel assigned to provide Services under this Agreement will not be, nor be deemed to be for any purpose, an employee or agent of FNB Financial Services; (ii) each EGS Personnel assigned to provide Services to FNB Financial Services under this Agreement will be and remain an employee, independent contractor or subcontractor of EGS for the entire period such person is providing Services to FNB Financial Services hereunder; (iii) that FNB Financial Services has no obligation whatsoever to provide EGS Personnel with liability or health insurance, or any other benefits provided to FNB Financial Services

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employees; (iv) EGS is solely responsible, at its own expense, for complying with all laws, rules and regulations or any governmental authority having appropriate jurisdiction relating to EGS Personnel, including immigration, payroll and income taxation, workers compensation, disability and unemployment insurance, certification, documentation, and maintenance; and (v) it will use commercially reasonable efforts to ensure that EGS Personnel will not claim benefits from FNB Financial Services under FNB Financial Services's employee benefit plans, or under applicable unemployment or workers' compensation laws for any injuries sustained by EGS Personnel while performing Services. EGS acknowledges that it is solely responsible for the payment of compensation to EGS Personnel, including the payment, withholding and transmittal of all applicable taxes and insurance, unemployment contributions and workers' compensation contributions. Additionally, EGS represents that it assumes full responsibility for processing unemployment and workers' compensation claims involving EGS Personnel.

4. **Authority.** EGS represents and warrants to FNB Financial Services that (i) it has full power and authority to grant the rights granted by this Agreement to FNB Financial Services with respect to the Services and any Deliverables without the consent of any other person or entity; (ii) its execution and delivery of this Agreement and EGS's performance or compliance with the terms of this Agreement will not conflict with, result in a breach of, constitute a default under, or require the consent of any third party under any license, sublicense, lease, contract, agreement or instrument to which EGS is bound or to which EGS's properties are subject; and (iii) there are no pending or threatened lawsuits, actions or any other legal or administrative proceedings against EGS which, if adversely determined against EGS, would have a material adverse affect on EGS's ability to perform its obligations under this Agreement. FNB Financial Services represents and warrants to EGS that (i) its execution and delivery of this Agreement and FNB Financial Services's performance or compliance with the terms of this Agreement will not conflict with, result in a breach of, constitute a default under, or require the consent of any third party under any license; sublicense, lease, contract, agreement or instrument to which FNB Financial Services is bound or to which FNB Financial Services's properties are subject; and (ii) there are no pending or threatened lawsuits, actions or any other legal or administrative proceedings against FNB Financial Services which, if adversely determined against FNB Financial Services, would have a material adverse affect on FNB Financial Services's ability to perform its obligations under this Agreement. Each of FNB Financial Services and EGS represent and warrant to the other that: (x) this Agreement has been validly executed and delivered, (y) this Agreement constitutes the legal, valid and binding obligation of such Party enforceable against it in accordance with its terms, subject to bankruptcy, insolvency, reorganization and other laws affecting creditors' rights generally, and, with regard to equitable remedies, to the discretion of the court before which proceedings to obtain those remedies may be pending; (z) such Party has all requisite corporate power and authority to enter into this Agreement and to carry out the transactions

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contemplated by this Agreement, and that the execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement have been duly authorized by all requisite corporate action on the part of such Party.

5. **Intellectual Property Warranty.** EGS represents and warrants to FNB Financial Services that: (i) all Deliverables and Services performed by EGS will be the original work of EGS (or duly licensed by EGS for the purposes for which they are delivered) such that ownership may be granted as set forth in this Agreement; (ii) EGS is the lawful owner or licensee of all technology used by it in the performance of the Services and creation of the Deliverables (except that technology provided by FNB Financial Services); and (iii) if access to such technology is granted hereby, EGS has the right to permit FNB Financial Services access to or use of such technology. EGS further warrants to FNB Financial Services that to the best of EGS's actual knowledge: (x) there is no claim, litigation or proceeding pending or threatened against EGS with respect to the Services or Deliverables, or any component thereof, alleging infringement of any Intellectual Property Rights of any person or entity; and (y) neither the performance of the Services by EGS nor the furnishing of the Deliverables, will in any way constitute a knowing infringement or other violation of any Intellectual Property Rights, non-disclosure agreement, or other rights of any third party. FNB Financial Services warrants to EGS that to the best of FNB Financial Services 's actual knowledge: (i) there is no claim, litigation or proceeding pending or threatened against FNB Financial Services with respect to the FNB Financial Services Technology, or any component thereof, alleging infringement of any Intellectual Property Rights of any person or entity; and (ii) the furnishing of EGS with access to the FNB Financial Services Technology in connection with the Services, will not in any way constitute an infringement or other violation of any Intellectual Property Rights, non-disclosure agreement, or other rights of any third party. Without prejudice to any other rights of FNB Financial Services against the EGS, including any indemnification obligations, if any Deliverable, or any part thereof, under this Agreement becomes, the subject of any claim, suit or proceeding for infringement of any Intellectual Property Rights or if any Deliverable, or any part thereof, is held or otherwise determined to infringe any Intellectual Property Rights, EGS will at its expense achieve the following results in the listed order of preference: (A) secure for FNB Financial Services the right to continue using the affected product; or (B) replace or modify the product to make it non-infringing without materially degrading its performance or utility.

6. **Virus.** EGS represents and warrants that any software code written by EGS Personnel or materials furnished by EGS to FNB Financial Services will not knowingly contain: (a) any computer code or instructions that may disrupt, damage, or interfere with FNB Financial Services's use of its computer and/or telecommunication facilities, *e.g.* malicious code, viruses, etc., and (b) devices capable of automatically or remotely stopping the code from operating (e.g., passwords, fuses, time bombs, etc.).

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7. Disclaimers. TO THE MAXIMUM EXTENT PERMITIED BY LAW, EGS DISCLAIMS ALL WARRANTIES EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT AND ALL IMPLIED OR STATUTORY WARRANTIES, INCLUDING ANY IMPLIED OR STATUTORY WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, ACCURACY, QUIET ENJOYMENT, OR SYSTEMS INTEGRATION. EXCEPT FOR EGS'S EXPRESS OBLIGATIONS IN THIS AGREEMENT, THE ENTIRE RISK AS TO SATISFACTORY QUALITY, PERFORMANCE, ACCURACY, AND EFFORT OF ANY SOFTWARE AND ANY OTHER PRODUCT OR SERVICE THAT MAYBE PROVIDED SHALL BE WITH FNB FINANCIAL SERVICES.

M. TERM AND TERMINATION

1. **General.** This Agreement commences on the Effective Date, and continues in full force and effect until terminated by either Party under the termination rights set forth in this Agreement.

2. **Termination for Cause**

    a. FNB Financial Services may terminate, in whole or in part, this Agreement for cause if: (i) EGS breaches any material provision of this Agreement or repeatedly breaches any such provision and does not cure such breach within ten (10) days of receiving notice thereof (or within such other time frame as may be agreed upon in writing by the Parties); (ii) EGS generally fails to pay its debts as they become due, admits in writing its inability to pay its debts generally, makes a general assignment for the benefit of creditors or any proceedings are instituted by or against EGS or EGS takes any corporate action to authorize any of the actions set forth in this Section 3.i.xii.2; (iii) EGS breaches any of its obligations under Section 3.i.vii (Confidentiality) or Section 3.i.viii.5 (Intellectual Property Warranty); or (iv) EGS fails to comply with its reporting and remedy obligations related to Security Breaches, in accordance with the provisions of Section 3.i.vii.7 (Security Breach), and then fails to cure or remedy any of the aforementioned breaches within thirty (30) calendar days (but in the case of Security Breaches, within ten (10) calendar days) of receiving written notice from FNB Financial Services specifying in reasonable detail the nature of such breach(es). Any termination pursuant to subsections (i) through (iv) above will be effective as of the date specified in such termination notice, upon FNB Financial Services providing EGS with written notice of such termination pursuant to the terms of Section 3.i.xiii.3 (Notice).

    b. EGS may terminate, in whole or in part, this Agreement for cause if FNB Financial Services (i) breaches a material provision of this Agreement or repeatedly breaches any such provision; (ii) breaches any of its obligations under Section 3.i.vii (Confidentiality) or Section 3.i.viii.5 (Intellectual Property Warranty); and fails to remedy or any of the aforementioned breaches within

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thirty (30) calendar days following written notice to FNB Financial Services stating, with particularity and in reasonable detail, the nature of the claimed breach. Any termination pursuant to Section 3.i.xii.2.b, subsections (i) and (ii) above will be effective as of the date specified in such termination notice, upon EGS providing FNB Financial Services with written notice of such termination pursuant to the terms of Section 3.i.xiii.3 (Notice).

c. Each Party acknowledges that any notice and cure period permitted will not operate or be construed as a waiver of any subsequent, similar or other breach.

d. Notwithstanding termination, FNB Financial Services shall timely pay EGS's accrued and unpaid fees and reimbursable expenses through the effective date of termination. FNB Financial Services will pay the undisputed amounts in any final EGS invoice no later than thirty (30) days after FNB Financial Services's receipt of such invoice, and any additional amounts in respect of disputed amounts fifteen (15) days after the dispute has been settled to the Parties' mutual satisfaction.

3. **No Fault Termination.** If a court of competent jurisdiction or other administrative body empowered to issue such orders issues a final order or judgment holding that this Agreement or the Services offered hereunder, or some portion of the Services offered hereunder, are in violation of the law, or if a Party is required to terminate the Services of this Agreement by law, regulation or bank regulatory authority due to objections regarding the third party relationship formed hereby ("Judgment"), then either Party may terminate those portions of this Agreement that contravene such Judgment by providing the other Party with written notice of its intent to do so, which termination will be effective as of the date specified in such notice.

4. **Termination Without Cause.** FNB Financial Services may terminate this Agreement without cause upon thirty (30) days' prior written notice to EGS (or payment in lieu thereof). Notwithstanding termination, FNB Financial Services shall timely pay EGS's accrued and unpaid fees and reimbursable expenses through the effective date of termination. FNB Financial Services will pay the undisputed amounts in any final EGS invoice no later than thirty (30) days after FNB Financial Services's receipt of such invoice, and any additional amounts in respect of disputed amounts fifteen (15) days after the dispute has been settled to the Parties' mutual satisfaction.

5. **Effect of Termination.** Subjectto each Party's obligation to maintain certain records in accordance with applicable law (and then only for the time period required by law) or internal policies, and further subject to applicable law or judicial or administrative order regarding the return or destruction of documents, materials and other information, in the event this Agreement is terminated by either Party, each Party will return or irretrievably destroy all Confidential Information of the other Party that it (or its subcontractors, including, in the case of EGS, its Dependent Providers) has in its possession, including any information stored on computing equipment, and will provide the other Party with an officer's certificate attesting to

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such return or destruction, subject in all respects to data backup and recovery requirements in the ordinary course of business. In the event that the Confidential Information of a Party has been commingled by the receiving Party with its own Confidential Information such that it cannot feasibly be separated for return or destruction, such commingled data will be protected by the Receiving Party as the Disclosing Party's Confidential Information. Further, the Parties will work to ensure the termination of Services or transfer of Services to another service provider selected by FNB Financial Services (which may include FNB Financial Services) is orderly and is non-disruptive to the business continuation of each Party, such cooperation to include, subject to applicable law or judicial or administrative order, the transfer of all records, files (including computer tapes and diskettes), and the latest versions of any Deliverables in progress upon the effective date of termination, in the format mutually agreed by the Parties as applicable; provided, however, that in no event will EGS be required to provide copies of, or access to, any EGS Technology, Confidential Information of EGS, or information that EGS reasonably believes is privileged. Assistance provided by EGS in transitioning the Services will be billed to

FNB Financial Services at EGS's then-current rates for the EGS Personnel involved. However, if this transition has not been completed by the estimated termination date, EGS will, at the request of FNB Financial Services, continue to perform the Services on a month-to-month basis and be compensated for such Services at the then-current rates for applicable EGS Personnel on the condition that EGS has no obligation to provide the Services for longer than three (3) months from the date of termination of this Agreement. In the event this Agreement is terminated by any Party for any reason whatsoever, EGS will return to FNB Financial Services any fees prepaid by FNB Financial Services for which Services have not been rendered. Notwithstanding the foregoing, in the event FNB Financial Services terminates this Agreement without cause, FNB Financial Services will remain obligated to pay for all undisputed fees and expenses incurred prior to the effective date of termination. The Parties understand and agree that no termination of this Agreement will discharge or excuse completion of or performance of any liability or Services obligation herein undertaken or occurring prior to the effective date of such termination. In addition, the termination of this Agreement will not limit any other rights or remedies available to the terminating Party.

6. User Access Termination. Upon the effective date of termination of this Agreement for any reason, FNB Financial Services will immediately terminate both EGS's physical access to FNB Financial Services facilities and access to all FNB Financial Services computer systems or networks. In the case of a specific EGS Personnel who is being removed or replaced, FNB Financial Services will terminate such access to all FNB Financial Services computer systems or networks within 24 hours of written notice to EGS regarding the event giving rise to the need for termination. In the event that FNB Financial Services has permitted EGS to control any aspect of EGS Personnel's access to FNB Financial Services facilities, computer systems or

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networks, then EGS will terminate such access as of the effective date of termination of this Agreement. To the extent EGS has any EGS owned property or equipment at an FNB Financial Services location, EGS will be permitted reasonable access during normal business hours to retrieve such property or equipment.

N. GENERAL PROVISIONS

1. **Not Law Firm or Lobbyist.** FNB Financial Services acknowledges and Agrees that EGS is neither a law firm nor a lobbyist and that no part of the services to be performed pursuant to this Agreement shall constitute or is intended to constitute legal advice, the rendering of legal services, or lobbying activities.
2. **Acknowledgement.** EGS provides services to multiple clients within the financial services industry. FNB Financial Services acknowledges that these clients may be direct or indirect competitors of FNB Financial Services (including major residential mortgage servicers subject to interagency horizontal examination) and that the services EGS provides to such clients may be similar to the services provided to FNB Financial Services hereunder (including assistance with enforcement actions based upon the findings of interagency horizontal examinations and/or consent orders). EGS anticipates that other similarly-situated mortgage servicers may retain it to assist with enforcement actions based upon the findings of the interagency horizontal examination and/or consent orders. In such event, this Agreement envisions the creation of a central team, which will provide support to each engagement, including quality assurance, share information regarding regulatory expectations, methodologies, project planning, reporting formats, etc., and, where appropriate, may communicate with regulators on behalf of these clients. However, EGS will not share Confidential Information of FNB Financial Services with its other similarly-situated mortgage servicer clients, nor will EGS share confidential information of its other similarly-situated mortgage servicer clients with FNB Financial Services. Notwithstanding anything to the contrary in the Agreement and solely for purposes of this Acknowledgement, "Confidential Information" shall not include information obtained from regulators that does not uniquely apply to FNB Financial Services or its affiliates.
3. **Notice.** All notices, consents and other communications hereunder must be in writing and will be deemed to have been duly given when delivered personally, or one (1) business day after being sent by a nationally recognized overnight courier with package tracking capabilities. Notice that is delivered via facsimile or electronic mail is sufficient to meet the notice requirement, provided it is: (i) confirmed as received by the other Party, or (ii) an original copy follows it, as set forth above. All notices should be sent to the following addresses and indicated contacts:

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FNB Financial Services

Contact Name _____,

Contact No. _____,

Email _____,

Address _____,

EGS Security Solutions

Contact Name _____,

Contact No. _____,

Email _____,

Address _____,

4. **Assignment.** EGS will not assign any of its rights or delegate any of its duties under this Agreement without the prior written consent of FNB Financial Services, which consent will not be unreasonably withheld; any unauthorized EGS assignment or delegation will be null and void. EGS will not be relieved of any of its obligations hereunder as a result of any assignment of this Agreement. Subject to the foregoing, this Agreement will be binding upon and inure to the benefit of the Parties' successors and assigns.
5. **Change of Control.** Any change of control of EGS shall entitle FNB Financial Services to terminate this Agreement immediately upon written notice to EGS. For purposes of this Section, a "Change of Control" shall mean the (i) consolidation or merger of EGS with or into any entity or (ii) acquisition by any entity, or group of entities acting in concert, of all or substantially all of EGS's assets, or of beneficial ownership of 50% or more (or such lesser percentage that constitutes Control) of the outstanding voting securities or other ownership interests of such Party; "Control" shall mean the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Party, whether through the ownership of voting securities, by contract or otherwise.
6. **No Third-Party Beneficiaries.** EGS and FNB Financial Services intend that this Agreement will not benefit or create any right or cause of action in or on behalf of any person or entity other than the Parties.
7. **Modification and Waiver.** No modification of this Agreement and no waiver of any breach of this Agreement will be effective unless in writing and signed by an authorized representative of each Party. No waiver of any breach of this Agreement, and no course of dealing between the Parties, will be construed as a waiver of any other or subsequent breach of this Agreement.

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8. **Severability.** The provisions of this Agreement are severable. If a court or arbitrator holds any provision of this Agreement invalid, illegal or unenforceable, then the validity, legality or enforceability of the remaining provisions will in no way be affected or impaired thereby. If a court or arbitrator holds any such provision to be invalid or unenforceable, the adjudicating entity will replace that provision with a provision that is valid and enforceable, and most nearly reflects the intent of the original provision.
9. **Interpretation.** Each Party acknowledges that it has had the opportunity to read and review this Agreement with counsel, and that this Agreement has been the subject of active and complete negotiations, and that this Agreement may not be interpreted or construed in favor of or against any Party. Article and Section headings are provided for convenience only and are not to be used to construe or interpret this Agreement. However, if the terms "article(s)" and/or "section(s)" are used in reference to any legislation, statute or regulation, then the reference is deemed to include all related articles or sections within the same legislation, statute or regulation (as such articles and/or sections may be amended from time to time). Whenever the words "include" or "including" are used in this Agreement, they will be deemed to be followed by the words "without limitation."
10. **Contrary, Inconsistent, or Additional Terms.** Any pre-printed terms and conditions on any materials that EGS regularly uses with its other customers (e.g., order forms, invoices, browse-wrap or click-wrap terms and conditions) will be null and void and of no consequence whatsoever in interpreting the Parties' legal rights and responsibilities as they pertain to any of the contemplated Services provided hereunder.
11. **Consents.** Except as expressly agreed by the Parties, or as provided in Section 3.i.vii (CONFIDENTIALITY), wherever this Agreement requires either Party's approval, consent or satisfaction, such approval, consent or satisfaction may not be unreasonably or arbitrarily withheld or delayed.
12. **Governing Law.** This Agreement will be construed as having been made in, and will be governed in accordance with the laws of, the State of Delaware, excluding any applicable conflict of law provisions. The Parties consent to jurisdiction in New York or Colorado.
13. **Remedies upon Default.** Unless specifically set forth in this Agreement, in the event of breach by either Party, the non-breaching Party will be entitled to exercise any and all rights and remedies available to it at law or in equity, whether concurrently or separately, and the exercise of one remedy will not be deemed either an election of such remedy or a preclusion of the right to exercise any other remedy. Without limiting the generality of the foregoing, either Party may offset any fees it owes to the other Party against amounts it is otherwise owed.
14. **Dispute Resolution.** Subject to the terms of Section 3.i.vii.4 (Injunctive Relief) and Section 3.i.xiii.13 (Remedies upon Default) set forth above, any action, dispute, claim

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or controversy of any kind, whether in contract or tort, statutory or common law, legal or equitable, now existing or hereafter arising under or in connection with, or in any way pertaining to, this Agreement (each, a "Dispute") will be resolved expeditiously, amicably, and at the level within each Party's organization that is most knowledgeable about the disputed issue.

15. **Audit.** EGS Personnel will cooperate in providing to FNB Financial Services or its auditors (including any federal or regulatory auditors with jurisdiction over FNB Financial Services's operations, specifically, the acc any information reasonably requested by FNB Financial Services or its auditors that is necessary or required for the verification of performance of Services by EGS Personnel under this Agreement in accordance with applicable law and the terms and conditions of this Agreement, provided that (i) such audits by FNB Financial Services may only occur during normal business hours at the locations where EGS Personnel perform Services or retain records, and only after providing reasonable notice to EGS (not less than five (5) business days' notice), (ii) such inspections shall be conducted in a manner that is designed to minimize any adverse impact on normal business operations, (iii) FNB Financial Services will comply with all standard safety and security procedures of EGS in conducting any such audits, (iv) any information accessed by FNB Financial Services or its auditors in the performance of any such audit will be deemed to be the Confidential Information of EGS. Notwithstanding the foregoing, EGS reserves the right to withhold information it reasonably believes is privileged, and in no event will EGS be required to provide access to or otherwise disclose the source code or object code. If FNB Financial Services identifies a critical control weakness or risk that could adversely impact EGS's ability to perform under the terms and conditions of this Agreement, including a risk to Customer/Consumer Information or FNB Financial Services's ability to comply with applicable law, FNB Financial Services will promptly inform EGS in writing of such control weakness. Upon receipt of written notice from FNB Financial Services of such control weakness, EGS shall have fifteen (15) business days in which to review such notice and if EGS cannot remediate such weakness within a reasonable time and in accordance with a mutually agreed upon remediation plan, then EGS may notify FNB Financial Services in writing and may terminate this Agreement. In the event that EGS does not elect to terminate this Agreement and the Parties mutually agree upon a remediation plan and schedule, then FNB Financial Services shall have the right to independently verify such remediation.

16. **Records**

    a. **Services.** Subject to the terms of this Agreement and/or any other written agreement between the Parties, EGS will retain all information obtained or created in the course of performance hereunder for the term of this agreement, a reasonable amount of time thereafter at the request of FNB Financial Services, and as required by law. The Parties agree that any such records maintained and produced by EGS under this Agreement, to the extent not constituting privileged information or information that EGS or FNB Financial Services reasonably

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believes to be privileged, will be available, in English, during reasonable business hours, for examination or audit by governmental agencies having jurisdiction over FNB Financial Services. EGS will notify FNB Financial Services of any formal request by an authorized governmental agency to examine FNB Financial Services's records maintained by EGS, if EGS is permitted to make such a disclosure to FNB Financial Services under applicable law or regulation. FNB Financial Services agrees that EGS is authorized to provide all such described records, upon advance written notice to FNB Financial Services if allowed by law, when formally required to do so by an authorized governmental agency. Any time spent by EGS retrieving data or information related to this engagement upon request of FNB Financial Services, or any third party will be billed to FNB Financial Services at EGS's then-current rates for the EGS personnel involved in responding to any such request.

b. **Personnel.** With regard to: (a) the hire, tenure and conditions of employment of employees, their hours of work, the rates of and the payment of their wages; (b) the keeping of records and the making of reports; and (c) the payment, collection or deduction of federal, state and local taxes and contributions, EGS will keep and have available all necessary records and make all payments, reports, collections and deductions, and otherwise do any and all things as may be required to fully comply with applicable federal, state and local laws, ordinances and regulations in regard to said matters so as to fully relieve FNB Financial Services from and protect it against responsibility or liability therefore. EGS will file a FORM I099-MISC and all other reports required by law with respect to each Subcontractor assigned to FNB Financial Services.

17. **Execution.** To facilitate execution, this Agreement may be executed (i) pursuant to the process set forth in the Electronic Signatures in Global and National Commerce Act (15 USC §7001 et seq.), or (ii) in as many counterparts as may be required to reflect all Parties' assent; all counterparts shall collectively constitute a single agreement. A legible facsimile signature that can be authenticated will constitute an original a nd binding signature of a Party.

18. **Entire Understanding** This Agreement, including its Attachments, constitutes the exclusive and entire agreement between the Parties with respect to its subject matter, and as of the Effective Date, supersedes all prior or contemporaneous agreements, negotiations, representations and proposals of any kind, whether written or oral, either express or implied, relating to this subject matter. This Agreement includes and integrates any properly executed attachments, including the exhibits and addenda.

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IN WITNESS WHEREOF, EGS and FNB FINANCIAL SERVICES, by the signatures of their duly-an authorized representative below, intending to be legally bound, agree to all the provisions of this Agreement.

FNB.COM:

Authorized Signatory

_____

With a copy to the FNB FINANCIAL SERVICES Manager.

EGS Security Solutions:

Authorized Signatory

_____

With a copy to the EGS Security Solutions Manager.

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SCHEDULE 1

INFORMATION SECURITY PROCEDURES

A. Personnel Security Procedures

1. EGS (or "Vendor") shall appoint at least one contact who is knowledgeable about information security matters to respond to FNB Financial Services ("Customer") inquiries regarding computer security. This individual(s) must be responsible to notify Customer designated contacts if a confirmed breach or incident occurs as soon as practicable, but within a period not to exceed twenty-four (24) hours of Vendor's discovery of such breach or incident.
2. Security awareness training must be completed for all new Vendor personnel or contractors within one week of hire or being appointed to work on Customer Sensitive Data and recertified on an annual basis. There must be a testing component included. Security awareness training must cover at minimum the following topics: (i) the nature of sensitive material, (ii) Vendor personnel and contractor responsibilities in handling sensitive information including review of employee nondisclosure obligations, (iii) requirements for proper handling of sensitive material in physical form including transmission, storage and destruction, (iv) proper methods for protecting sensitive information on computer systems including password policy, (v) other computer security concerns, (vi) workplace security including building access, wearing of security badges, reporting of incidents and similar issues, and (vii) consequences of failure to properly protect information including potential loss of employment, damage to individuals whose private records are divulged and possible civil, financial and criminal penalties. Documentation must be kept to certify that this has been completed and such documentation must be available for review by Customer.

B. Network and Communications Security

1. Vendor warrants, represents and covenants that: (i) all Vendor connectivity to Customer computing systems and/or networks and all attempts at same shall be only through Customer's security gateways/firewalls and only through Customer approved security procedures; (ii) it will not access, and will not permit unauthorized persons or entities to access, Customer computing systems and/or networks without Customer's express written authorization and any such actual or attempted access shall be consistent with any such authorization; and (iii) it will use the a commercially reasonable, comprehensive virus detection/scanning program. Upon detecting a virus, the virus shall be automatically quarantined and/or eliminated and IT shall be notified of the detection. Vendor shall notify Customer immediately if it suspects, reasonably believes or becomes aware of the existence of any viruses (other than those routinely detected and deleted by Vendor's anti-virus programs) that impact the Services, disabling devices or trap doors in any related software, computing systems and/or networks. Vendor shall also notify Customer immediately if it identifies any elements of the deliverables/services that would make the Services or Deliverables susceptible to known

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viruses or viruses known to Vendor.

C. Data Procedures

1. The printing of all Customer/Consumer Information received, used or stored by Vendor (including its employees and/or subcontractors) in connection with the Services shall be restricted to a space dedicated by Vendor to handle and access such information (the "Customer Work Area") or to a management personnel's printer that is not available to EGS Personnel generally.
2. Disposal of Customer Sensitive Data on paper or other media must take place with shredders placed within the Customer Work Area or be performed, under Vendor's supervision, by a disposal company specializing in handling information of the same type as Customer Sensitive Data. If disposal is performed by Vendor employees, shredding must take place within the Customer Work Area before disposal or transit outside of the Customer Work Area.
3. Erasure of Information and Destruction of Storage Media a. All electronic storage media, containing confidential or restricted information, must be wiped or degaussed for physical destruction or disposal prior to departing Customer Work Areas. b. Wiping -At a minimum, erasure procedures must meet the DOD S220.22-M standard (7-times overwrite). If local regulations require a more stringent procedure, then that should be followed.

D. Physical Security

1. All backup and archival media containing Customer Sensitive Data, or other information used to provide services under the Agreement, must be contained in secure, environmentally-controlled storage areas owned, operated, or contracted for by Vendor, and electronic backup and archival media must be encrypted.

E. Application

1. Notwithstanding any other provision of the Agreement, Customer, in its discretion, shall have the right to subject any Vendor software developed for use by Customer to a security audit any time within sixty (60) days after delivery to Customer of the software or any time after delivering written notice to Vendor (with supporting documentation and/or analysis) that it has a reasonable basis for believing the software is non-secure. If such software in source code form is not delivered to Customer, then the complete results of a security audit conducted by Customer security staff or third parties shall be delivered to Vendor. The security audit may include, but not be limited to, the use of third party commercially available software security testing tools.
2. If after a security audit Vendor-developed software developed for use by Customer is reasonably determined to be non-secure by Customer, then upon written notice of such non-secure status, Vendor, at its cost and expense, shall use commercially reasonable efforts to remedy the security flaws by modifying or replacing the software within ninety (90) days of receipt of such written notice (the "Remedy Period"). Upon receipt of revised software and notice from Vendor that the security flaws have been remedied

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prior to the end of the Remedy Period, Customer may again subject the software to a security audit. If the software is determined to be non-secure with specific steps provided to demonstrate such determination and remains non-secure at the end of the Remedy Period, Customer shall be deemed to have not accepted the software under the terms of the Agreement unless Customer in its sole discretion otherwise expressly agrees in writing to accept the software.

3. Vendor shall engage, at its own expense and at least one time per year, a third party vendor possessing industry standard qualifications ("Testing Company") to perform penetration and vulnerability testing ("Penetration Tests") with respect to Vendor's systems containing or storing Customer Sensitive Data. The objective of such Penetration Tests is to identify design and/or functionality issues in applications or infrastructure of Vendor's systems containing or storing Customer Sensitive Data which could expose Customer's assets to risks from malicious activities. Penetration Tests shall probe for weaknesses in applications, network perimeters or other infrastructure elements as well as weaknesses in process or technical countermeasures relating to Vendor's systems containing or storing Customer Sensitive Data that could be exploited by a malicious party. Penetration Tests to be performed hereunder shall identify, at a minimum, the following security vulnerabilities: invalidated or unsanitized input; broken access control; broken authentication and session management; cross-site scripting (XSS) flaws; buffer overflows; injection flaws; improper error handling; insecure storage; denial of service; insecure configuration management; proper use of SSL/TLS; proper use of encryption; and anti-virus reliability and testing. Upon request of Customer after the annual Penetration Test has been performed, Vendor shall provide Customer with a summary of any high level and medium level security issues that were revealed during such Penetration Test and Vendor's plan for addressing such items.

F. Background Checks

1. Without limiting any rights or obligations contained in the Agreement, to the extent not previously performed by Vendor with respect to the applicable individual, background checks shall be performed by Vendor on all Vendor personnel and contractors (including temporary and non-employee personnel) prior to such individuals receiving access to Customer Sensitive Data. Background checks will consist of screened checks for educational history, employment history verification (prior three (3) employers, criminal checks dating back seven (7) years, and an OFAC prohibited persons check. If a Vendor facility does not permit any of the listed background check requirements, Vendor must secure Customer's written consent before any Vendor personnel and contractors may access Customer Sensitive Data at such facility.

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